

XII. Administrative Procedures – Fair Hearings		
CFR Reference: 246.9		Policy Number: 12.013 Implementing Office: Community Health Administration (CHA)
Effective date: 04/11/2023		Revised Date: 09/15/2016 03/3/2023
Approved by: _____ Dr Sharon Lewis DHA, RN-BC, CPM, Interim Director of DC Health	Review by Legal Counsel: _____ Phillip Husband, Esq.; General Counsel	

I. Authority	USDA
II. Reason for the Policy	Program participants are entitled to a fair hearing if they are unsatisfied with an adverse action made by the State or Local Agency.
III. Applicability	DC WIC State Agency and Local Agency Staff
IV. Policy Statement	This policy establishes the procedures under which an individual, parent, guardian or other representative may appeal an adverse action made by the State or a local WIC agency.
V. Procedure for Availability of Hearings	At the time of a claim against an individual for improperly issued benefits or at the time of participation denial or of disqualification from the WIC Program, the local agency shall inform each individual in writing of the right to a fair hearing, of the method by which a hearing may be requested, and that any positions or arguments on behalf of the individual may be presented personally or by a representative such as a relative, friend, legal counsel or other spokesperson. 1. The local agency shall provide written information on how to request a fair hearing to appeal an adverse action made by the local agency, (action which resulted in a claim against the individual at the time of the action. These actions may include request for repayment of the cash value of improperly issued benefits or denial of participation or disqualification from the Special Supplemental Nutrition Program for Women, Infants, and Children (WIC), DC WIC

	Policy 8.015 “Violations and Sanctions”). The participant may request notification form for Ineligibility and termination DC WIC Policy 8.006 Income Eligibility and 8.014 Ineligibility. The local agency shall appoint an impartial hearing official or panel to conduct the hearing, who does not have any personal stake or involvement in the decision and who was not directly involved in the initial determination of the action being contested. 2. A participant found ineligible for the Program at any time during the certification period shall be advised in writing of the reason(s) for ineligibility, the termination date, and of the right to a fair hearing. Reasons for ineligibility during a certification period and the termination notice timeframes are: 10 day Notification of Termination: a. No longer categorically eligible; b. Changes to income or family size making them income ineligible; c. No longer have a required nutritional need; or d. Sanctions for Program Abuse. All documentations are saved onto MIS system by the local agency. 3. The participant may request for a conference within 7 days of notification of the adverse action. The local agency shall set up a conference within 10 days of a written or verbal request by an individual. The participant may bring a relative, friend or lawyer to speak for them at the conference. 4. The individual may ask for a fair hearing with the Office of Administrative Hearings within 60 days of notification of an adverse action if no resolution is reached at a conference at the local agency. 5. The State Agency allows for an individual to request a fair hearing within 90 days after the date the agency mails or gives the applicant or participant the notice of adverse action. Fair hearings are conducted at: WIC State Agency Office Headquarters (Administrative Office) 899 North Capitol Street NE 3rd Floor Washington, DC 20002 Telephone: 202-442-9397 Or Participant has an option of Fair Hearing at: District of Columbia – Office of Administrative Hearings 441 Fourth Street, NW Suite 450 North Washington, DC 20001 Telephone: 202-442-9094 In cases where the appointed hearing official is not available, a backup official must be appointed. A panel member could serve in this role.
VI. Time Frame and Notification of Fair	A written notification of the hearing shall be sent to the applicant/participant (and his/her representative) at least 10 days prior to the hearing date. The notification shall:

Hearing Process	1. Specify the date, time and place of the hearing. 2. State briefly the issues, which are to be subject to the hearing. 3. Explain the manner in which the fair hearing will be conducted. 4. Inform participant of the right to be represented to verify and present documented evidence, produce witnesses, question adverse witnesses and to examine (prior to and during) the documents and records supporting the action under appeal.
VII. Denial of Fair Hearing Request	The Local Agency may deny or dismiss a request for a hearing due to the following reasons: 1. The request is not received within the time frame established by the State Agency 2. The request is withdrawn in writing by the applicant/participant or a representative of the applicant/participant; 3. The applicant/participant or representative fails, to appear at the hearing without good cause; 4. The applicant/participant has been denied participation by a previous hearing and cannot provide evidence that circumstances relevant to Program eligibility have changed in such a way as to justify a hearing; 5. Participants who request a fair hearing to appeal the termination of benefits before the date entered on the Ineligibility Notice shall continue to receive WIC benefits until the Hearing officer reaches a decision or the certification period expires, whichever occurs first. This does not apply to applicants denied benefits at initial certification, participants whose certification period has expired or participants who become categorically ineligible for benefits.
VIII. Hearing Decision	The applicant/participant shall receive, by mail, a written decision from the DC WIC State Agency or the Office of Administrative Hearings (depending on where the hearing was conducted) within 10 days following the date of determination, but no more than 45 days following the filing date. When a fair hearing decision is unfavorable to the applicant/participant, OAH or the DC WIC State Agency shall explain the right to pursue judicial review. If the decision is in favor of the applicant/participant and benefits were denied or discontinued, benefits shall begin immediately.
IX. Appendix	N/A
X. Reference	CFR § 246.9 Fair Hearing Procedures for Participants